

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

JOINT STATUS REPORT

Pursuant to the Administrative Law Judge's ORDER REQUIRING JOINT STATUS REPORT, JOINT MOTION TO EXTEND (IF NECESSARY) AND JOINT MOTION FOR PROTECTIVE ORDER (IF NECESSARY) BY NOVEMBER 20, 2025 dated November 13, 2025, Complainant FormuKleen, LLC ("FormuKleen" or "Complainant") and Respondent Top Shipping Systems Corp. ("TSS" or "Respondent") (jointly the "Parties") hereby submit their Joint Status Report.

Status of Discovery

Discovery has failed to progress while both parties wait on a proposed motion for protective order. Due to this, and the government shutdown that lasted 40 days and meant that the Commission was inactive, both parties are requesting to extend discovery once the protective order is entered, via a separate joint motion.

Proposed Scheduling Order

Due to the issues described above, and the upcoming holiday season, the Parties propose the following revised Scheduling Order:

- **January 20, 2026** – Responses to Initial Discovery Requests Due
- **January 26, 2026** – Depositions (if any) Begin
- **February 25, 2026** – Deadline for Submission of Additional Discovery Requests
- **April 06, 2026** – Close of Discovery and Completion of Depositions (if any Depositions occur)
- **April 27, 2026** – Joint Status Report
- **May 27, 2026** – Complainant’s Brief, Proposed Findings of Fact, and Appendix Due
- **June 26, 2026** – Respondent’s Opposition Brief, Responses to Proposed Findings of Fact, and Appendix Due
- **July 13, 2026** – Complainant’s Reply Brief and Responses to Proposed Findings of Fact Due

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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Signature:  _____

Date: 11/19/2025

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Signature: 

Date: 11 / 19 / 2025

CERTIFICATE OF SERVICE

I certify that on November 20th, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission.

/Sara Dandan/